

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index#:
Date Filed:

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SANTIAGO HERNANDEZ,
Plaintiff,

SUMMONS WITH
NOTICE
Jury Trial Demanded

- against -

Plaintiff designates Bronx
County as the place of trial

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MELISSA
CASTILLO, POLICE OFFICER WENDY FLORES,
POLICE OFFICER JAMES RODRIGUEZ, POLICE
OFFICER JUAN RODRIGUEZ, POLICE OFFICER
STEVEN OQUENDO, POLICE OFFICER JASON
FERNANDEZ, POLICE OFFICER OSVALDO
MALDONADO, DETECTIVE DAVID MONTANEZ,
and POLICE OFFICERS "JOHN DOE" #1-6 (being
unnamed Police Officers of the 40th Precinct, the name
John Doe being fictitious, as the true names are presently
unknown), each Individually and in their Official Capacity

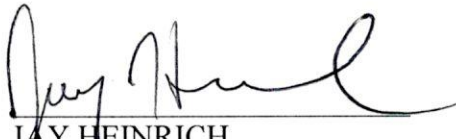
The basis of venue is:
Location of Occurrence

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to
serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a
notice of appearance on the Plaintiff's attorney within twenty (20) days after the service of this
Summons, exclusive of the day of service (or within thirty (30) days after the service is complete
if this Summons is not personally delivered to you within the State of New York); and in case of
your failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the Complaint.

Dated: Bronx, New York
November 16, 2015


JAY HEINRICH
THE HEINRICH LAW GROUP, P.C.
Attorney of Plaintiff
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Bronx, New York 10451
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NOTICE: The nature of the action is monetary damages based upon false arrest, false imprisonment, negligent detention, excessive detention, negligent infliction of emotional distress, intentional infliction of emotional distress, assault, battery, menacing, harassment, excessive force, negligent hiring/training/retention, Municipal Liability, negligence, gross negligence, reckless disregard, abuse of process, malicious prosecution, violation of rights under the United States Constitution, violation of rights protected under the Constitution of the State of New York, violation of civil rights under 42 USC §1983 et seq. by the Defendants against the Plaintiff.

The relief sought is monetary damages for a sum of money that would otherwise exceed the jurisdictional limit of all lower Courts that would have jurisdiction over this matter.

To:

The City of New York
C/o Corporation Counsel
100 Church Street
New York, NY 10007

New York City Police Department
C/o Corporation Counsel
100 Church Street
New York, NY 10007

Police Officer Melissa Castillo
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

Police Officer Wendy Flores
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

Police Officer James Rodriguez
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

Police Officer Juan Rodriguez
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

Police Officer Steven Oquendo
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

Police Officer Jason Fernandez
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

Police Officer Osvaldo Maldonado
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

Detective David Montanez
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

Police Officers “JOHN DOE” #1-6
(Police Officers whose names are not yet known or identified)
C/o New York City Police Department
40th Precinct
257 Alexander Avenue
Bronx, NY 10454